the country, the new law gives it enough to keep the issue on the boil nationally. The UCC also adds more sizzle to the Hindutva plank in the run-up to the general election, coming as it does in the wake of headline events such as the Ram temple consecration, the opening of a rear cellar in the Gyanvapi mosque for Hindu worship, abrogation of Article 370 and the continuing debate on the Citizenship (Amendment) Act (CAA).

Historically, the party's predecessor, the Bharatiya Jana Sangh (BJS), had used the promise of uniform personal laws as a political plank since 1967. This was born as a byproduct of its opposition to the codification of reform in Hindu personal laws by the Nehru regime, registered by a Jana Sangh national executive way back in 1955. Primarily, it was a way of asking why a constitutional leeway was afforded for the personal laws of minority communities to bypass such reform. And asking for such exemptions to be scrapped. The arrant outlier, according to this view, was Muslim personal law—especially with its sanction for practices like marriages of minors (upon attaining puberty), polygamy and perceived distortions like triple talaq. The ban of the latter by the Modi regime in 2019, after an adverse 2017 ruling on it by the Supreme Court, had inaugurated the present phase of debate on personal laws.

The genesis of the debate, though, goes back to the years before Independence and to a conscious asymmetry in Indian law as it evolved thereafter. As the demand for Partition was sharpening in the dusk of British rule, it became part of colonial tactics to leave the Muslim cultural space untouched. Thus, the Muslim Personal Law (Shariat) Application Act, 1937, guaranteed near-absolute autonomy. As the new republic forged itself in the aftermath of Partition, the Nehru regime opted to continue the guarantee of religious autonomy to all minorities, thinking it wise to allay fears that India may turn into a Hindu theocracy a la Pakistan.

UTTARAKHAND UCC DECODED

- Marriages involving direct blood relations deemed unlawful. Exception 'within the degrees of prohibited relationships' for certain communities which follow such customs
- All marriages to be legally registered within 60 days or invite Rs 10,000 fine. False information on marriage affidavit attracts penalty of three months jail and Rs 25,000 fine
- Intestate succession to be contested as UCC sees no difference between ancestral and self-acquired property
- Mandatory for live-in couples to submit 'statement of live-in relationship under sub-section (1) of Section 381' to the registrar within a month of cohabiting. Again, violation means a Rs 10,000 fine and three months jail
- Registrar to do 'summary inquiry' to see that all norms are followed in live-in unions, such as any of the partners being not married/ in another live-in relationship/ minor or in any other way compromised
- Termination of a live-in relationship also to be intimated by an affidavit. Male partner to pay maintenance and children born of such unions entitled to inheritance and legal protections
- Ban on child marriage. Legal age for marriage to remain 21 for men, 18 for women
- Sons and daughters granted equal property rights, with special safeguards for 'Hindu united families'
- UCC bill will not apply to tribal communities, as their 'unique customs and practices' have constitutional protection
- UCC panel held 72 meetings; 272,000 suggestions received on e-mail, through letters also taken into consideration

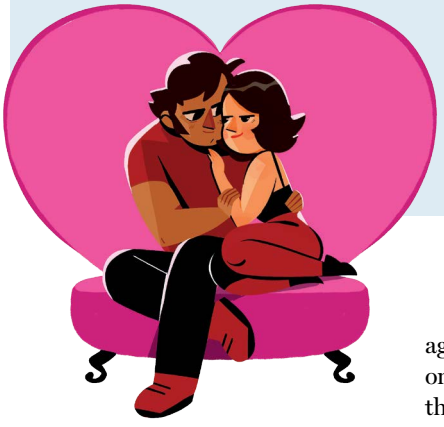


Illustration by SIDDHANT JUMDE

The Jana Sangh, though, called it Muslim appeasement and called for the harmonisation of all personal laws under a uniform civil code.

This is the field the present bill seeks to level—a contentious, if deliberate, move but also one that has always struck a chord among those who voted along Hindu confessional lines. It was only for a brief while—in 1977, when it merged with the Janata Party—that the Jana Sangh took it off its agenda as a tactical move; it was back on the table in 1980 when the BJP took birth. In the 1998, '99 and 2004 Lok Sabha elections, the socialist allies in the National Democratic Alliance (NDA) again forced the saffron party to put it on the back-burner, but it returned in the 2009 party manifesto. Now, after back-to-back comprehensive national victories, the party feels it's time to take the UCC bull by the horns.

Within the Muslim space, it naturally shrinks the space for clerics and ulemas—often organised under the All India Muslim Personal Law Board (AIMPLB)—who retain the authority to issue Shariat-based rules and interpretations on personal law. This space for a sort of ongoing Islamic jurisprudence makes for a mutable set of personal laws, not amenable to being codified and not always in sync with the liberal spirit of the Constitution. The BJP's main plaint owes not only to this immunity, but also to the fact that their role gives the clerics leverage over the community,